

Sarla Devi Yadav v. Kanpur Electrical Supply Company Ltd.

High Court of Judicature at Allahabad · Division Bench · 8 August 2019 · W.P.(C) No. 24883 of 2019 · WRIT - C No. 24883 of 2019 · **Writ disposed; relegated to Executive Engineer under Clause 6.14.**

HEADNOTE

A consumer facing a recovery certificate for electricity dues who seeks installment repayment may be left to represent to the Executive Engineer, who is to fix installments in accordance with Clause 6.14 of the U.P. Electricity Supply Code, 2005 within two weeks of that representation. The writ is disposed of on that direction without a merits decision on the recovery.

FACTUAL SUMMARY

Sarla Devi Yadav challenged a recovery certificate dated 23 February 2019 for Rs. 1,19,485 as electricity dues of Kanpur Electrical Supply Company Ltd. She told the High Court that she had already cleared the dues but the cheque had bounced, and that she was ready to pay the amount again if installments were fixed. Counsel for the supply company was heard. The Division Bench disposed of the writ on that representation without examining the recovery certificate on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility for electricity dues

HOLDING

Where the consumer, facing a recovery certificate for electricity dues, seeks installment repayment after a bounced cheque, the writ court may dispose of the petition by permitting a representation to the Executive Engineer, who shall fix installments in accordance with Clause 6.14 of the U.P. Electricity Supply Code, 2005 within two weeks of the representation. The recovery is not examined on merits. ¶ 4

PRINCIPLE TAGS

installment-payment-clause-6.14 Installment of electricity dues under recovery was not granted by the writ court; the consumer was sent to the Executive Engineer to fix installments under Clause 6.14 within two weeks of representation. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CERTIFICATE DATED 23.02.2019

¶ 2-4

NOT DECIDED — WHETHER THE PETITIONER HAD ALREADY CLEARED THE DUES AND WHETHER THE CHEQUE HAD BOUNCED

¶ 3-4